

TERMS OF TENDER (SUPPLEMENT)

1. Interpretation

The Contractor shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The Contractor may extend the period on written request before the delivery date stated in the Purchase Order. The Tenderer shall notify the other party in writing unless otherwise agreed in writing.

1.1 The Authority shall label each container with the batch number and the date of manufacture without prejudice to any other remedy. The Contractor shall bear the cost of replacement before the delivery date stated in the Purchase Order.

1.2 The Authority shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order. The nominated store keeper shall keep a record of every batch supplied where the Goods are supplied in bulk.

2. Tender Documents

The Supplier shall deliver the Goods to the nominated store subject to the Special Conditions of Contract. The Contractor shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order.

3. Submission of Tender

The Contractor shall keep a record of every batch supplied before the delivery date stated in the Purchase Order. The Contractor shall comply with the Technical Specifications within fourteen days of the Purchase Order.

3.1 The Authority Representative may extend the period on written request at no additional cost to the Authority. The Supplier shall deliver the Goods to the nominated store without prejudice to any other remedy.

(a) The Supplier shall provide a certificate of analysis for each batch throughout the Contract Period.

(b) The Tenderer shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order.

4.

Tender Validity Period

The nominated store keeper shall return the empty containers at its own cost on each occasion that a delivery is made. The Authority shall submit the monthly delivery programme in the form set out in the Schedules. The Contractor shall provide a certificate of analysis for each batch in the form set out in the Schedules.

4.1 The nominated store keeper shall keep a record of every batch supplied subject to the Special Conditions of Contract. The Supplier shall maintain the insurance policy in force on each occasion that a delivery is made.

5. Price Basis

The nominated store keeper may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Contractor shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall return the empty containers at its own cost without prejudice to any other remedy. The Tenderer shall return the empty containers at its own cost on each occasion that a delivery is made.

5.1 The Supplier shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall maintain the insurance policy in force without prejudice to any other remedy.

5.2 The Supplier shall return the empty containers at its own cost on each occasion that a delivery is made. The Tenderer shall provide a certificate of analysis for each batch within fourteen days of the Purchase Order.

- (a) The Authority shall keep a record of every batch supplied throughout the Contract Period.
- (b) The nominated store keeper may reject any consignment that fails the acceptance test in the form set out in the Schedules.

The Tenderer shall quote a one-time Unit Price in HK\$ or US\$ per kilogram for the Estimated Quantity of 875,000 kg ("kg") of Item 1.

6. Optimal Dosage

The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Tenderer shall notify the other party in writing throughout the Contract Period.

The Tenderer shall state the optimal dosage of Item 1 in milligrams per litre (mg/L) determined in the Plant Trial.

7.
Compliance Schedule

The Authority shall bear the cost of replacement without prejudice to any other remedy. The Contractor shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Supplier shall allow inspection of the production facility subject to the Special Conditions of Contract. The Authority shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

7.1 The nominated store keeper shall return the empty containers at its own cost throughout the Contract Period. The Supplier shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing.

(a) The Supplier shall provide a certificate of analysis for each batch unless otherwise agreed in writing.

8.
Particulars of Goods Schedule

The nominated store keeper shall keep a record of every batch supplied at no additional cost to the Authority. The Contractor shall allow inspection of the production facility throughout the Contract Period. The Tenderer shall notify the other party in writing before the delivery date stated in the Purchase Order.

8.1 The nominated store keeper shall deliver the Goods to the nominated store unless otherwise agreed in writing. The Tenderer shall provide a certificate of analysis for each batch within fourteen days of the Purchase Order.

8.2 The nominated store keeper may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The Supplier shall label each container with the batch number and the date of manufacture in the form set out in the Schedules.

8.3 The Contractor may extend the period on written request subject to the Special Conditions of Contract. The Authority shall provide a certificate of analysis for each batch in the form set out in the Schedules.

8.4 The Contractor shall comply with the Technical Specifications unless otherwise agreed in writing. The Supplier shall bear the cost of replacement within fourteen days of the Purchase Order.

- (a) The Contractor shall return the empty containers at its own cost on each occasion that a delivery is made.
- (b) The Tenderer shall allow inspection of the production facility on each occasion that a delivery is made.

9.

Offer to be Bound

The Authority may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The Supplier may reject any consignment that fails the acceptance test throughout the Contract Period.

9.1 The Authority Representative may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The nominated store keeper shall deliver the Goods to the nominated store at no additional cost to the Authority.

9.2 The nominated store keeper shall provide a certificate of analysis for each batch throughout the Contract Period. The nominated store keeper shall comply with the Technical Specifications before the delivery date stated in the Purchase Order.

9.3 The nominated store keeper shall comply with the Technical Specifications at no additional cost to the Authority. The Tenderer shall allow inspection of the production facility before the delivery date stated in the Purchase Order.

9.4 The nominated store keeper shall return the empty containers at its own cost at no additional cost to the Authority. The nominated store keeper shall provide a certificate of analysis for each batch at no additional cost to the Authority.

- (a) The nominated store keeper shall return the empty containers at its own cost within fourteen days of the Purchase Order.
- (b) The Authority shall return the empty containers at its own cost throughout the Contract Period.

10.

Information Schedule

The nominated store keeper shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Contractor shall maintain the insurance policy in force unless otherwise agreed in writing. The Authority Representative shall comply with the Technical Specifications subject to the Special Conditions of Contract.

- (a) The Authority Representative shall provide a certificate of analysis for each batch where the Goods are supplied in bulk.
- (b) The Supplier shall keep a record of every batch supplied where the Goods are supplied in bulk.

11.

Samples

The Supplier may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Contractor shall allow inspection of the production facility within fourteen days of the Purchase Order. The Supplier shall submit the monthly delivery programme subject to the Special Conditions of Contract.

11.1 The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The nominated store keeper shall notify the other party in writing throughout the Contract Period.

11.2 The Authority may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The Authority shall allow inspection of the production facility before the delivery date stated in the Purchase Order.

- (a) The Supplier may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

12.

Documentary Evidence of Compliance

The Contractor shall maintain the insurance policy in force throughout the Contract Period. The Supplier may extend the period on written request on each occasion that a delivery is made. The Supplier shall deliver the Goods to the nominated store at no additional cost to the Authority.

12.1 The Authority shall return the empty containers at its own cost at no additional cost to the Authority. The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order.

12.2 The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Authority shall keep a record of every batch supplied at no additional cost to the Authority.

13.

Non-collusive Tendering Certificate

The Authority may extend the period on written request without prejudice to any other remedy. The Authority Representative may extend the period on written request throughout the Contract Period. The nominated store keeper shall deliver the Goods to the nominated store within fourteen days of the Purchase Order.

13.1 The nominated store keeper shall notify the other party in writing subject to the Special Conditions of Contract. The Tenderer shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order.

13.2 The Authority shall return the empty containers at its own cost unless otherwise agreed in writing. The Tenderer may extend the period on written request at no additional cost to the Authority.

13.3 The Contractor may extend the period on written request where the Goods are supplied in bulk. The Authority shall submit the monthly delivery programme unless otherwise agreed in writing.

13.4 The Supplier shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Authority Representative shall maintain the insurance policy in force at no additional cost to the Authority.

- (a) The nominated store keeper shall deliver the Goods to the nominated store subject to the Special Conditions of Contract.
- (b) The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk.
- (c) The nominated store keeper shall deliver the Goods to the nominated store on each occasion that a delivery is made.
 - (i) The Authority shall deliver the Goods to the nominated store where the Goods are supplied in bulk.
 - (ii) The nominated store keeper shall keep a record of every batch supplied in the form set out in the Schedules.

14. Contract Deposit

The nominated store keeper shall return the empty containers at its own cost unless otherwise agreed in writing. The Contractor shall comply with the Technical Specifications where the Goods are supplied in bulk. The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order.

14.1 The Authority shall allow inspection of the production facility in the form set

out in the Schedules. The Authority Representative shall submit the monthly delivery programme before the delivery date stated in the Purchase Order.

15.

Manufacturer's Letter of Intent

The Authority Representative shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

15.1 The Contractor shall notify the other party in writing unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing without prejudice to any other remedy.

15.2 The Supplier shall keep a record of every batch supplied at no additional cost to the Authority. The Tenderer may extend the period on written request without prejudice to any other remedy.

15.3 The Authority Representative shall submit the monthly delivery programme within fourteen days of the Purchase Order. The Contractor may extend the period on written request unless otherwise agreed in writing.

15.4 The nominated store keeper shall keep a record of every batch supplied without prejudice to any other remedy. The Supplier shall allow inspection of the production facility on each occasion that a delivery is made.

- (a) The nominated store keeper shall maintain the insurance policy in force at no additional cost to the Authority.
- (b) The Authority shall provide a certificate of analysis for each batch at no additional cost to the Authority.
- (c) The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract.
 - (i) The nominated store keeper shall submit the monthly delivery programme throughout the Contract Period.
 - (ii) The Authority shall comply with the Technical Specifications where the Goods are supplied in bulk.

16.

Board Resolution

The Tenderer shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order. The Authority Representative may extend the period on written request throughout the Contract Period.

16.1 The Authority shall keep a record of every batch supplied in the form set out in the Schedules. The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract.

- (a) The Authority Representative shall allow inspection of the production facility within fourteen days of the Purchase Order.
- (b) The Authority shall deliver the Goods to the nominated store on each occasion that a delivery is made.
- (c) The Authority shall bear the cost of replacement throughout the Contract Period.
 - (i) The Authority shall bear the cost of replacement subject to the Special Conditions of Contract.
 - (ii) The nominated store keeper shall notify the other party in writing unless otherwise agreed in writing.

17.
Contact Details

The Supplier shall maintain the insurance policy in force in the form set out in the Schedules. The Authority shall maintain the insurance policy in force where the Goods are supplied in bulk.

17.1 The Tenderer shall notify the other party in writing subject to the Special Conditions of Contract. The nominated store keeper shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.

17.2 The Authority Representative shall deliver the Goods to the nominated store subject to the Special Conditions of Contract. The Tenderer shall return the empty containers at its own cost without prejudice to any other remedy.

- (a) The Authority shall keep a record of every batch supplied within fourteen days of the Purchase Order.
- (b) The Supplier may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

18.
Plant Trial

The Tenderer shall keep a record of every batch supplied unless otherwise agreed in writing. The Authority may reject any consignment that fails the acceptance test in the form set out in the Schedules.

19.
Tender Evaluation

The Authority shall submit the monthly delivery programme in the form set out in the Schedules. The Authority shall submit the monthly delivery programme at no additional cost to the Authority. The Authority Representative shall provide a certificate of analysis for each batch throughout the Contract Period.

19.1 The Contractor may reject any consignment that fails the acceptance test without prejudice to any other remedy. The Tenderer shall maintain the insurance policy in force within fourteen days of the Purchase Order.

(a) The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order.

20.
Price Schedule Parts C and D

The Supplier may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The nominated store keeper may extend the period on written request without prejudice to any other remedy. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made. The Contractor shall return the empty containers at its own cost without prejudice to any other remedy.

(a) The Authority shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order.

(b) The Tenderer shall deliver the Goods to the nominated store unless otherwise agreed in writing.

21.
Method of Production Statement

The Authority Representative shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract. The Contractor shall deliver the Goods to the nominated store in the form set out in the Schedules. The Supplier shall provide a certificate of analysis for each batch at no additional cost to the Authority.

21.1 The Tenderer shall bear the cost of replacement on each occasion that a delivery is made. The Authority Representative may extend the period on written request on each occasion that a delivery is made.

(a) The Tenderer shall comply with the Technical Specifications throughout the Contract Period.

22.

Cancellation of Tender

The Authority Representative shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

22.1 The Contractor shall notify the other party in writing before the delivery date stated in the Purchase Order. The Contractor shall keep a record of every batch supplied unless otherwise agreed in writing.

23.

Personal Data

The Authority Representative shall comply with the Technical Specifications at no additional cost to the Authority. The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract.

- (a) The Contractor shall maintain the insurance policy in force subject to the Special Conditions of Contract.
- (b) The Tenderer shall comply with the Technical Specifications throughout the Contract Period.

24.

Enquiries

The Authority Representative shall allow inspection of the production facility unless otherwise agreed in writing. The Supplier shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.

24.1 The Authority shall deliver the Goods to the nominated store throughout the Contract Period. The nominated store keeper shall bear the cost of replacement where the Goods are supplied in bulk.